GREENBERG TRAURIG, LLP
Vincent H. Chieffo *(SBN 49069)*
ChieffoV@gtlaw.com
Breeanna Brewer (SBN 312269)
BrewerB@gtlaw.com
1840 Century Park East, Suite 1900
Los Angeles, CA 90067-2121
Telephone: 310-586-7700
Facsimile: 310-586-7800

Attorneys for Defendant
Katheryn Hudson p/k/a Katy Perry

Vincent H. Chieffo (SBN 49069)
ChieffoV@gtlaw.com
Breeanna Brewer (SBN 312269)
BrewerB@gtlaw.com
GREENBERG TRAURIG, LLP
1840 Century Park East, Suite 1900
Los Angeles, CA 90067-2121
Telephone: 310-586-7700
Facsimile: 310-586-7800
Attorneys for Defendant
Katheryn Hudson p/k/a Katy Perry

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

WESTERN DIVISION

BACKGRID USA INC., a California corporation,

Plaintiff,

vs.

KATHERYN HUDSON p/k/a KATY PERRY; and DOES 1-10, inclusive,

Defendant.

Case No. 2:19-cv-09309-AB-MRWx

DEFENDANT'S NOTICE OF MOTION AND MOTION TO DISMISS PLAINTIFF'S COMPLAINT PURSUANT TO F. R. CIV. P. 12(b)(6), AND, IN THE ALTERNATIVE, FOR AN INQUIRY TO THE REGISTER OF COPYRIGHTS PURSUANT TO 17 U.S.C. § 411(b)(2); MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT THEREOF

[Filed concurrently with Proposed Order; Request for Judicial Notice; Declaration of Vincent H. Chieffo; Proposed Order]

Date: March 6, 2019
Time: 10:00 a.m.
Courtroom: 7B

Judge: Honorable André Birotte Jr.
Action Filed: October 29, 2019

Case No.: 2:19-cv-09309-AB-MRWx
DEFENDANT'S NOTICE OF MOTION AND MOTION TO DISMISS PLAINTIFF'S COMPLAINT PURSUANT TO F.R.C.P. 12(b)(6); AND, IN THE ALTERNATIVE, FOR AN INQUIRY TO THE REGISTER OF COPYRIGHTS PURSUANT TO 17 U.S.C. § 411(b)(2); MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT THEREOF
Date: March 6, 2019
Time: 10:00 a.m.
Courtroom: 7B
Judge: Honorable André Birotte Jr.

caused the registration to be refused. Defendant requests that the Court make the statutorily required inquiry to the Register.

Fourth, even if Plaintiff does have standing and there is a valid copyright in the allegedly infringed photo, Defendant's reproduction of that photo was a fair use and not an infringement of copyright.

No amendment would cure the defects in the Complaint, and the Court therefore should dismiss the Complaint without leave to amend.

This Motion is made following the conference of counsel pursuant to L.R. 7-3 which took place on January 17, 2020 and in a subsequent exchange of written positions on the issues raised by the instant motion.

Dated: February 3, 2020 GREENBERG TRAURIG, LLP

By: */s/ Vincent H. Chieffo*
Vincent H. Chieffo
Attorneys for Defendant Katheryn Hudson p/k/a Katy Perry

TO PLAINTIFF AND ITS ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that, on March 6, 2019 at 10:00 a.m., or as soon thereafter as the matter may be heard, in Courtroom 7B of the above-entitled Court, located at 350 West First Street, Los Angeles, California 90012, Defendant Katheryn Hudson p/k/a Katy Perry ("Defendant") will, and hereby does, move the Court for an order dismissing the Complaint filed herein by Plaintiff Black Grid USA LLC ("Plaintiff") pursuant to Federal Rule of Civil Procedure 12(b)(6) and, in the alternative, for a Court inquiry to the Register of Copyrights pursuant to 17 U.S.C. 411(b)(2).

The Complaint fails to state a claim upon which relief may be granted and should be dismissed in its entirety.

This Motion is made following the conference of counsel pursuant to L.R. 7-3 which took place on January 17, 2020 and in a subsequent exchange of written positions on the issues raised by the instant motion.

Dated: February 3, 2020

Respectfully submitted,

GREENBERG TRAURIG, LLP

By: /s/ Vincent H. Chieffo
Vincent H. Chieffo
Attorneys for Defendant Katheryn Hudson p/k/a Katy Perry

TABLE OF CONTENTS

TABLE OF CONTENTS

Page

I. INTRODUCTION. 1

II. SUMMARY OF FACTS 2

A. PLAINTIFF'S ALLEGEDLY INFRINGED SNAPSHOT 2

B. THE GROUP SNAPSHOT COPYRIGHT REGISTRATION 3

C. THE UNDERLYING PRIOR WORKS THAT PERVADE THE SNAPSHOT DEPOSIT SERIES 4

D. DEFENDANT'S ALLEGEDLY INFRINGING INSTAGRAM CREDIT POST. 5

III. ARGUMENT. 5

A. MOTION TO DISMISS STANDARD. 5

B. PLAINTIFF FAILS TO STATE A CLAIM FOR COPYRIGHT INFRINGEMENT. 7

1. Plaintiff Does Not Own A Valid Copyright In The Snapshot Because The Snapshot Is An Unoriginal and Non-Copyrightable Unauthorized Derivative Work. 7

2. The Complaint Fails To Allege That Plaintiff Acquired The Right To Sue For Accrued Infringements When It Acquired the Group Snapshot Copyright. 11

3. Plaintiff Lacks Standing Because The Purported Copyright Registration For The Snapshot Is Invalid For Failure To Disclose That It Is An Unauthorized Derivative Work. 13

4. Defendant's Instagram Credit Post Is A Fair Use Of The Snapshot And Not an Infringement. 15

i. Purpose and Character of the Use. 15

ii. The Nature of the Copyrighted Work. 17

iii. Amount and Value of the Portion Used. 18

TABLE OF AUTHORITIES

TABLE OF AUTHORITIES

Page(s)

Federal Cases

A&M Records, Inc. v. Napster, Inc.,
239 F.3d 1004 (9th Cir. 2001) 20

ABKCO Music, Inc. v. Harrisongs Music, Ltd.,
944 F.2d 971 (2d Cir. 1991) 11

Anderson v. Stallone,
No. 87-0592, 1989 WL 206431 (C.D. Cal. April 26, 1989) 9

Ashcroft v. Iqbal,
556 U.S. 662 (2009) 6, 12

Bell Atlantic Corp. v. Twombly,
550 U.S. 544 (2007) 5, 6

Campbell v. Acuff-Rose Music, Inc.,
510 U.S. 569 (1994) 16, 17, 18, 19

Carell v. Shubert Org., Inc.,
104 F. Supp. 2d 236 (S.D.N.Y. 2000) 9, 10

Cervantes v. Countrywide Home Loans, Inc.,
656 F.3d 1034 (9th Cir. 2011) 21

DRK Photo v. McGraw-Hill Glob. Educ. Holdings, LLC,
870 F.3d 978 (9th Cir. 2017) 11

Durham v. Indus. v. Tomy Corp.,
630 F. 2d 905 (2d Cir. 1980) 9

Eden Toys, Inc. v. Florelee Undergarment Co. Inc.,
697 F.2d 27 (2d Cir 1982) 9

Entm't Research Grp., Inc. v. Genesis Creative Grp., Inc.,
122 F.3d 1211 (9th Cir. 1997) 7, 8, 9, 10

Fanni v. Northrop Grumman Corp.,
No. CV 98-5197 DT, 2000 WL 35905106 (C.D. Cal. Apr. 10, 2000) 6

Cases

Ashcroft v. Iqbal, 556 U.S. 662 (2009) 4

Bell Atlantic Corp. v. Twombly, 550 U.S. 544 (2007) 4

Cervantes v. Countrywide Home Loans, Inc., 656 F.3d 1034 (9th Cir. 2011) 6

Fanni v. Northrop Grumman Corp., No. CV 98-5197 DT AIJX, 2000 WL 35905106 (C.D. Cal. Apr. 10, 2000) 5

Perfect 10, Inc. v. Visa Int'l Serv. Ass'n, 494 F.3d 788 (9th Cir. 2007) 4

United States v. Ritchie, 342 F.3d 903 (9th Cir. 2003) 5, 6

Walt Disney Co. v. Powell Video Network, Inc., 284 F.3d 977 (9th Cir. 2002) 5

Federal Statutes

17 U.S.C. § 501(b) 1

Federal Rules

Fed. R. Civ. P. 12(b)(6) 4

Fed. R. Civ. P. 8(a)(2) 4

MEMORANDUM OF POINTS AND AUTHORITIES

I. INTRODUCTION.

The Court should grant Defendant Katheryn Hudson's ("Defendant") Motion to Dismiss (the "Motion") because the Complaint (Dkt No. 1) ("Complaint") filed by Plaintiff BackGrid USA Inc. ("Plaintiff") fails based on its express allegations, materials subject to Judicial Notice, and applicable law. Plaintiff's claims are that: (i) Plaintiff owns a copyright to a snapshot (the Snapshot) of Defendant and her companion in character as Bill and Hillary Clinton, donning specialized and copyrightable makeup (including prosthetics), and her other companion dressed as a "Trump Troll" in a unique mask arriving at a 2016 Halloween party; and, (ii) Defendant infringed that copyright by reproducing it on an Instagram post with her comments giving credit to the makeup and costume designers that were the authors of the prior copyrightable works reproduce in the allegedly infringes Snapshot.

The complaint should be dismissed because it cannot allege a valid copyright in the Snapshot because the Snapshot is an unoriginal and unauthorized derivative work reproducing the copyrighted creative works of makeup, design, prosthetics, and mask. Plaintiff does not sufficiently allege standing under 17 U.S.C. § 501(b). Plaintiff only alleges that it acquired ownership of the purported copyright in the Snapshot, months or perhaps years after the alleged infringement accrued, but it does allege that it acquired the additional right to sue infringement accruing before it acquired ownership of the supposed copyright in the Snapshot.

Plaintiff also lacks standing under 17 U.S.C. § 411(a) because the copyright registration for the Snapshot Deposit Series is invalid pursuant to 17 U.S.C. § 411(b) as a result of it containing knowing inaccuracies that if known to the Register of Copyrights would have caused the registration to be refused.

Finally, even if Plaintiff does have standing and a valid copyright in the Snapshot, Defendant's inclusion of a cropped version of that Snapshot on her Instagram post with her comments giving credit and authorship attribution to the artists who created the

MEMORANDUM OF POINTS AND AUTHORITIES

I. INTRODUCTION.

The Court should grant Defendant Katheryn Hudson's ("Defendant") Motion to Dismiss (the "Motion") because the Complaint (Dkt. No. 1) ("Complaint") filed by Plaintiff BackGrid USA Inc. ("Plaintiff") fails based on its express allegations, materials subject to Judicial Notice, and applicable law. Plaintiff's claims are that: (i) Plaintiff owns a copyright to a snapshot (the Snapshot) of Defendant and her companion in character as Bill and Hillary Clinton, donning specialized and copyrightable makeup (including prosthetics), and her other companion dressed as a "Trump Troll" in a unique mask arriving at a 2016 Halloween party; and, (ii) Defendant infringed that copyright by reproducing it on an Instagram post with her comments giving credit to the makeup and costume designers that were the authors of the prior copyrightable works reproduce in the allegedly infringes Snapshot.

The complaint should be dismissed because it cannot allege a valid copyright in the Snapshot because the Snapshot is an unoriginal and unauthorized derivative work reproducing the copyrighted creative works of makeup, design, prosthetics, and mask.

Plaintiff does not sufficiently allege standing under 17 U.S.C. § 501(b). Plaintiff only alleges that it acquired ownership of the purported copyright in the Snapshot, months or perhaps years after the alleged infringement accrued, but it does allege that it acquired the additional right to sue infringement accruing before it acquired ownership of the supposed copyright in the Snapshot.

Plaintiff also lacks standing under 17 U.S.C. § 411(a) because the copyright registration for the Snapshot Deposit Series is invalid pursuant to 17 U.S.C. § 411(b) as a result of it containing knowing inaccuracies that if known to the Register of Copyrights would have caused the registration to be refused.

Finally, even if Plaintiff does have standing and a valid copyright in the Snapshot, Defendant's inclusion of a cropped version of that Snapshot on her Instagram post with her comments giving credit and authorship attribution to the artists who created the

copyrighted works reproduced without permission in the Snapshot is a fair use of the snapshot and not an infringement.

The Court should grant the Motion and dismiss the Complaint for failure to state a claim without leave to amend or, in the alternative, to submit the inquiry to the Register of Copyrights required by 17 U.S.C. § 411(b)(2).

II. SUMMARY OF FACTS.[1]

A. PLAINTIFF'S ALLEGEDLY INFRINGED SNAPSHOT.

Defendant is a famous American singer, songwriter, actress, businesswoman, and entrepreneur. (Complaint, ¶ 5.). On October 28, 2016, Defendant and her companions arrived at actress Kate Hudson's annual Halloween party (the "Party"). (Complaint ¶ 8; RJN, Ex. 1). Defendant appeared at the Party in extensive and specialized creative makeup and prosthetics, wardrobe costumes, and masks so as to appear as Bill and Hillary Clinton, and a third individual in a unique mask that was created by combining elements of Donald Trump and a troll. (Complaint Exhibit B; RJN, Ex. 1). Indeed, Defendant's and her companions' actual appearances were so transformed before arriving at the Party that none of them can actually be identified in Plaintiff's allegedly infringed Snapshot.

Upon Defendant's arrival at the party, a paparazzi, Devone Byrd (the "Photographer") stood outside snapping in quick succession a series of snapshots of the trio. On their own initiative and at their own direction, Defendants and her companions posed upon arrival at the Party – pointing, waving, making a variety of facial expressions, and positioning themselves directly towards the Photographer. (*See* Defendant's Request for Judicial Notice ("RJN"), Ex. 1; Complaint Ex. B.).

[1] This summary is based on the well plead factual allegations of the Complaint, the exhibits to the Complaint, and the documents incorporated into the complaint of which this Court may take judicial notice. *See infra* at § III A; Defendants' Request for Judicial Notice ("RJN"), Exhibits 1 – 3.

mere conclusory statements, do not suffice . . . [W]here the well-pleaded facts do not permit the court to infer more than the mere possibility of misconduct, the complaint has alleged -- but it has not 'show[n]' -- 'that the pleader is entitled to relief.' Fed. Rule Civ. Proc. 8(a)(2)." *Ashcroft v. Iqbal*, 556 U.S. 662, 678-79 (2009). Thus, when ruling on a Rule 12(b)(6) motion, "the court need not accept conclusory allegations of law or unwarranted inferences, and dismissal is required if the facts are insufficient to support a cognizable claim." *Perfect 10, Inc. v. Visa Int'l Serv. Ass'n*, 494 F.3d 788, 794 (9th Cir. 2007); *see also Twombly*, 550 U.S. at 555.

Further, while review on a motion to dismiss under Rule 12(b)(6) generally is confined to the allegations of the complaint, a court may consider documents attached to or incorporated by reference into a complaint where neither party disputes their authenticity. *United States v. Ritchie*, 342 F.3d 903, 907–08 (9th Cir. 2003); *Fanni v. Northrop Grumman Corp.*, No. CV 98-5197 DT AIJX, 2000 WL 35905106 at *6 (C.D. Cal. Apr. 10, 2000) ("Documents whose contents are alleged in a complaint and whose authenticity no party questions, but which are not physically attached to the pleading, may be considered in ruling on a Rule 12(b)(6) motion to dismiss.").

Accordingly, even if a document is not attached to a complaint, it may be incorporated by reference into a complaint if, as here, the plaintiff refers extensively to the document or the document forms the basis of the plaintiff's claim. *See Van Buskirk v. Cable News Network, Inc.*, 284 F.3d 977, 980 (9th Cir. 2002) ("In this case, the district court relied on the doctrine of "incorporation by reference" to consider documents that were referenced extensively in the complaint and were accepted by all parties as authentic.").

Defendant has concurrently submitted her request that this Court take judicial notice of three documents: a copy of the deposit copied submitted in connection with the registration of the purported copyright to the copyright allegedly infringed Snapshot (Complaint Ex. A); and copies of two documents setting forth the results of two searches on the California Secretary of State's website for current corporate information regarding

Request for Judicial Notice ("RJN"), Exhibits 1 – 3.

III. ARGUMENT

A. Motion to Dismiss Standard.

To survive a Rule 12(b)(6) motion to dismiss, a plaintiff must provide the "grounds" of its "entitle[ment] to relief [which] requires more than labels and conclusions, and a formulaic recitation of the elements of a cause of action will not do." *Bell Atlantic Corp. v. Twombly*, 550 U.S. 544, 555 (2007). Additionally, "the tenet that a court must accept as true all of the allegations contained in a complaint is inapplicable to legal conclusions. Threadbare recitals of the elements of a cause of action, supported by mere conclusory statements, do not suffice . . . [W]here the well-pleaded facts do not permit the court to infer more than the mere possibility of misconduct, the complaint has alleged – but it has not 'show[n]' – 'that the pleader is entitled to relief.' Fed. Rule Civ. Proc. 8(a)(2)." *Ashcroft v. Iqbal*, 556 U.S. 662, 678-79 (2009).

Thus, when ruling on a Rule 12(b)(6) motion, "the court need not accept conclusory allegations of law or unwarranted inferences, and dismissal is required if the facts are insufficient to support a cognizable claim." *Perfect 10, Inc. v. Visa Int'l Serv. Ass'n*, 494 F.3d 788, 794 (9th Cir. 2007); see also *Twombly*, 550 U.S. at 555.

Further, while review on a motion to dismiss under Rule 12(b)(6) generally is confined to the allegations of the complaint, a court may consider documents attached to or incorporated by reference into a complaint where neither party disputes their authenticity. *United States v. Ritchie*, 342 F.3d 903, 907–08 (9th Cir.

mere conclusory statements, do not suffice . . . [W]here the well-pleaded facts do not permit the court to infer more than the mere possibility of misconduct, the complaint has alleged -- but it has not 'show[n]' -- 'that the pleader is entitled to relief.' Fed. Rule Civ. Proc. 8(a)(2)." *Ashcroft v. Iqbal*, 556 U.S. 662, 678-79 (2009). Thus, when ruling on a Rule 12(b)(6) motion, "the court need not accept conclusory allegations of law or unwarranted inferences, and dismissal is required if the facts are insufficient to support a cognizable claim." *Perfect 10, Inc. v. Visa Int'l Serv. Ass'n*, 494 F.3d 788, 794 (9th Cir. 2007); *see also Twombly*, 550 U.S. at 555.

Further, while review on a motion to dismiss under Rule 12(b)(6) generally is confined to the allegations of the complaint, a court may consider documents attached to or incorporated by reference into a complaint where neither party disputes their authenticity. *United States v. Ritchie*, 342 F.3d 903, 907–08 (9th Cir. 2003); *Fanni v. Northrop Grumman Corp.*, No. CV 98-5197 DT AIJX, 2000 WL 35905106 at *6 (C.D. Cal. Apr. 10, 2000) ("Documents whose contents are alleged in a complaint and whose authenticity no party questions, but which are not physically attached to the pleading, may be considered in ruling on a Rule 12(b)(6) motion to dismiss.").

Accordingly, even if a document is not attached to a complaint, it may be incorporated by reference into a complaint if, as here, the plaintiff refers extensively to the document or the document forms the basis of the plaintiff's claim. *See Van Buskirk v. Cable News Network, Inc.*, 284 F.3d 977, 980 (9th Cir. 2002) ("In this case, the district court relied on the doctrine of "incorporation by reference" to consider documents that were referenced extensively in the complaint and were accepted by all parties as authentic.").

Defendant has concurrently submitted her request that this Court take judicial notice of three documents: a copy of the deposit copied submitted in connection with the registration of the purported copyright to the copyright allegedly infringed Snapshot (Complaint Ex. A); and copies of two documents setting forth the results of two searches on the California Secretary of State's website for current corporate information regarding

dismiss without leave where a plaintiff's proposed amendments would fail to cure the pleading deficiencies and amendment would be futile."). Defendant asks the Court to grant the Motion without leave to amend and to dismiss this action.

Dated: February 3, 2020

GREENBERG TRAURIG, LLP

By: */s/ Vincent H. Chieffo*
Vincent H. Chieffo
Attorneys for Defendant Katheryn Hudson p/k/a Katy Perry

IV. CONCLUSION

Based on Plaintiff's lack of standing and the fair use of Defendant's Instagram Credit Post, there is no reasonable possibility that Plaintiff could cure the defects in its Complaint. Under these circumstances, the Court has wide discretion to deny Plaintiff leave to amend. See *Cervantes v. Countrywide Home Loans, Inc.*, 656 F.3d 1034, 1041 (9th Cir. 2011) ("Although leave to amend should be given freely, a district court may dismiss without leave where a plaintiff's proposed amendments would fail to cure the pleading deficiencies and amendment would be futile."). Defendant asks the Court to grant the Motion without leave to amend and to dismiss this action.

Dated: February 3, 2020

Respectfully submitted,

GREENBERG TRAURIG, LLP

By: /s/ Vincent H. Chieffo
Vincent H. Chieffo
Attorneys for Defendant Katheryn Hudson p/k/a Katy Perry

dismiss without leave where a plaintiff's proposed amendments would fail to cure the pleading deficiencies and amendment would be futile."). Defendant asks the Court to grant the Motion without leave to amend and to dismiss this action.

Dated: February 3, 2020 GREENBERG TRAURIG, LLP

By: */s/ Vincent H. Chieffo*
Vincent H. Chieffo
Attorneys for Defendant Katheryn Hudson p/k/a Katy Perry

CERTIFICATE OF COMPLIANCE

The undersigned, counsel of record for Defendant Katheryn Hudson p/k/a Katy Perry, certifies that this brief contains 1161 words, which complies with the word limit of L.R. 11-6.1.

Dated: February 3, 2020

Respectfully submitted,

GREENBERG TRAURIG, LLP

By: /s/ Vincent H. Chieffo
Vincent H. Chieffo
Attorneys for Defendant Katheryn Hudson p/k/a Katy Perry